

PASSED

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 24-008
Amendments to Title 5, Chapter 2, Article O Chickasaw Nation Code
(Judgments)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted rules and procedures for the Chickasaw Nation District Court, and

WHEREAS, the Tribal Legislature desires to amend those rules and procedures.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following sections to be codified at Title 5, Chapter 2, Article O of the Chickasaw Nation Code:

“SECTION 5-215.22 **POWER TO VACATE OR MODIFY ITS JUDGMENTS;**
WHEN.

The District Court shall have power to vacate or modify its own judgments or orders within the times prescribed hereafter:

1. by granting a new trial for the cause, within the time and in the manner prescribed in Sections 5-215.23 through 5-215.29 below;
2. where the defendant had no actual notice of the pendency of the action at the time of the filing of the judgment or order;
3. for mistake, neglect, or omission of the Court Clerk or irregularity in obtaining a judgment or order;
4. for fraud, practiced by the successful party, in obtaining a judgment or order;
5. for erroneous proceedings against an infant, or a person of unsound mind, where the condition of such defendant does not appear in the record, nor the error in the proceedings;

6. for the death of one of the parties before the judgment in the action;
7. for unavoidable casualty or misfortune, preventing the party from prosecuting or defending;
8. for errors in a judgment, shown by an infant in twelve (12) months after arriving at full age; or
9. for taking judgments upon warrants of attorney for more than was due to the plaintiff, when the defendant was not summoned or otherwise legally notified of the time and place of taking such judgment.

SECTION 5-215.23**MOTIONS TO CORRECT, OPEN, MODIFY OR VACATE.**

A. The Court may correct, open, modify or vacate a judgment, decree, or appealable order on its own initiative not later than thirty (30) days after the judgment, decree, or appealable order has been filed with the Court Clerk. Notice of the Court's action shall be given as directed by the Court to all affected parties.

B. On motion of a party made not later than thirty (30) days after a judgment, decree, or appealable order has been filed with the Court Clerk, the Court may correct, open, modify, or vacate the judgment, decree, or appealable order. If the moving party did not prepare the judgment, decree, or appealable order, and this Title 5 required a copy of the judgment, decree, or appealable order to be mailed to the moving party, and the court records do not reflect the mailing of a copy of the judgment, decree, or appealable order to the moving party within three (3) days, exclusive of weekends and holidays, after the filing of the judgment, decree, or appealable order, the motion to correct, open, modify, or vacate the judgment, decree, or appealable order may be filed no later than thirty (30) days after the earliest date on which the court records show that a copy of the judgment, decree, or appealable order was mailed to the moving party. The moving party shall give notice to all affected parties. A motion to correct, open, modify, or vacate a judgment or decree filed after the announcement of the decision on all issues in the case but before the filing of the judgment or decree shall be deemed filed immediately after the filing of the judgment or decree.

C. After thirty (30) days after a judgment, decree, or appealable order has been filed, proceedings to vacate or modify the judgment, decree, or appealable order shall be by petition in conformance with this Title 5.

SECTION 5-215.24**MISTAKES OR OMISSIONS OF THE COURT CLERK.**

Proceedings to correct mistakes or omissions of the clerk, or irregularity in obtaining a judgment or order, shall be by motion, upon reasonable notice to the adverse party or his attorney in the action.

SECTION 5-215.25**MOTIONS AFTER THIRTY (30) DAYS.**

If more than thirty (30) days after a judgment, decree, or appealable order has been filed, proceedings to vacate or modify the judgment, decree, or appealable order, on the grounds mentioned in Paragraphs 2, 4, 5, 6, 7, 8 and 9 of Section 5-215.22 above, shall be by petition, verified by affidavit, setting forth the judgment, decree, or appealable order, the grounds to vacate or modify it, and the defense to the action, if the party applying was defendant. On this petition, a summons shall issue and be served as in the commencement of a civil action.

SECTION 5-215.26**LIENS AND SECURITIES PRESERVED.**

The Court may first try and decide upon the grounds to vacate or modify a judgment or order before trying or deciding upon the validity of the defense or cause of action. If a judgment is modified, all liens and securities obtained under it shall be preserved to the modified judgment.

SECTION 5-215.27**ORDER SUSPENDING PROCEEDINGS.**

The party seeking to vacate or modify a judgment or order, may obtain an order suspending proceedings on the whole or part thereof; which order may be granted by the Court, or any judge thereof, upon its being rendered probable, by affidavit, or by exhibition of the record, that the party is entitled to have such judgment or order vacated or modified. On the granting of any such order, the Court, or Judge, may require the party obtaining any such order to enter into an undertaking to the adverse party to pay all damages that may be caused by granting of the same.

SECTION 5-215.28**JUDGMENT BEFORE TRIAL.**

When the judgment was rendered before the action stood for trial, the suspension may be granted, as provided in Section 5-215.27 above, although no valid defense to the action is shown; and the Court shall make such orders, concerning the executions to be issued on the judgment as shall give to the defendant the same rights of delay he would have had if the judgment had been rendered at the proper time.

SECTION 5-215.29TIME LIMITATIONS.

Proceedings to vacate or modify a judgment, decree or order, for the causes mentioned in paragraphs 4, 5 and 7 of Section 5-215.22 above must be commenced within two (2) years after the filing of the judgment, decree or order, unless the party entitled thereto be an infant, or a person of unsound mind and then within two (2) years after removal of such disability. Proceedings for the causes mentioned in Paragraphs 3 and 6 of Section 1031 of this title, shall be within three (3) years, and in Paragraph 9 of Section 1031 of this title, within one (1) year after the defendant has notice of the judgment, decree or order. A void judgment, decree or order may be vacated at any time, on motion of a party, or any person affected thereby."

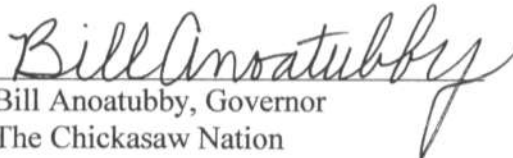
Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on July 20, 2007, by a vote of 13 ayes, 0 nays, 0 abstentions.



Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: JUL 20 2007

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Explanation: This resolution adds new sections to Title 5, Chapter 2, Article O of the Chickasaw Nation Code. The new sections would allow the District Court to open, modify or vacate a judgment, decree, or appealable order on its own initiative or motion of either party in certain circumstances.

Requested By: Tim Colbert, Committee Chair
Court Development Ad Hoc Committee

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